

DAVID LOPEZ; ET AL. vs. AMERICAN HONDA MOTOR CO., INC.
Case No. CU25-09816

Motions to Compel

TENTATIVE RULING

The Parties are to appear to address whether Plaintiffs have submitted verifications as to any of their responses, specifically:

- (1) Motion to deem facts admitted and request for monetary sanctions.
- (2) Motion to compel responses to form interrogatories and request for monetary sanctions.
- (3) Motion to compel responses to requests for production and request for monetary sanctions.
- (4) Motion to compel responses to special interrogatories and request for monetary sanctions.

Even if Plaintiffs have submitted verifications to their responses, the Court will hear argument on whether sanctions should be imposed.

ROBERT HUGHES vs. PRO STEEL ERECTORS; ET AL.
Case No. FCS057451 (Consolidated with FCS057476)

AVILA's Motion to Substitute Personal Representative

TENTATIVE RULING

Plaintiff FREDY CASTILLO AVILA ("AVILA") moves to substitute in ZACHARY MOORE, solely in his capacity as personal representative of the estate of Defendant DANIEL MOORE, as a defendant in this case per Code of Civil Procedure section 377.41. DANIEL MOORE is deceased.

Code of Civil Procedure section 377.41 provides that a court may, upon motion, allow an action against a deceased person to continue against the representative of that person's estate so long as the plaintiff complies with Part 4 of Division 7 of the Probate Code (concerning creditor claims). Probate Code section 9370 (within Part 4 of Division 7) states that an action pending against a decedent at time of death may not be continued against the decedent's personal representative unless a claim is first filed as provided in Part 4 of Division 7, the claim is at least partially rejected, and the plaintiff applies to the court for an order permitting continuation within three months of notice of rejection. A creditor may consider a claim rejected if there has been no action on it

within thirty days of filing. (Prob. Code, § 9256.) The three-month time limit after rejection only applies if the plaintiff receives a notice of rejection informing him that there is a three-month time limit. (Prob. Code, § 9370, subd. (a)(3).)

AVILA filed his original action against DANIEL MOORE on December 1, 2021. DANIEL MOORE died on May 10, 2024. (Declaration of Nicholas J. Anderson in Support of Motion at ¶ 5, Exhibit C.) AVILA filed a creditor's claim against DANIEL MOORE's estate. (*Id.* at ¶ 6, Exhibit D.) More than thirty days have passed without action on the claim. (*Id.* at ¶ 9.) AVILA never received a notice telling him he had three months to make this motion in court, so the three-month time limit does not apply to him. All requirements for ZACHARY MOORE, as DANIEL MOORE's estate representative, to be substituted into this case are satisfied.

AVILA's motion to substitute in ZACHARY MOORE as a defendant solely in his capacity as personal representative of the estate of DANIEL MOORE is granted.

CHAMPION MORTGAGE v. FREDERICK COOLEY; ET AL.
Case No. FCS058061

Defendant's Motion to Compel CHAMPION's Further Responses to Form Interrogatories, Set Two, Special Interrogatories, Set Two, Requests for Admission, Set One, and Requests for Production, Set Two

TENTATIVE RULING

Defendant FREDERICK MARC COOLEY moves to compel Plaintiff CHAMPION MORTGAGE COMPANY ("CHAMPION") to further respond to certain of his discovery requests.

On March 30, 2026 the court specifically authorized Defendant to file this motion. However, the court only authorized the motion to discuss Defendant's requests for admission #10, 12, 33, and 34, issues regarding provision of a privilege log, and Plaintiff's response to Form Interrogatory 17.1 insofar as it pertains to requests for admission #6 and 7. The court disregards all other discovery issues raised in this motion other than those specifically identified in its March 30, 2026 order.

Requests for Admission. Request #10 asks CHAMPION to admit it was no longer the beneficiary of the relevant deed of trust on February 8, 2022. CHAMPION admits it "was not the proper party to enforce the debt" at that time. This is not a sufficiently direct response to the question posed. CHAMPION must further respond.

Request #12 asks CHAMPION to admit it had no right to foreclose on the deed of trust on February 8, 2022. CHAMPION admits it "was not the proper party to commence foreclosure" at that time. This is a sufficiently direct response to the question posed. CHAMPION need not further respond.